

**SUBSTITUTE FOR
HOUSE BILL NO. 6038**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending section 30306 (MCL 324.30306), as amended by 2018 PA
631.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 30306. (1) Except as provided in section 30307(6), to
2 obtain a permit for a use or development listed in section 30304, a
3 person shall file an application with the department on a form
4 provided by the department. The application ~~shall~~**must** include all
5 of the following:

- 6 (a) The person's name and address.
7 (b) The location of the wetland.
8 (c) A description of the wetland.



(d) A statement and appropriate drawings describing the proposed use or development.

(e) The wetland owner's name and address.

(f) An environmental assessment of the proposed use or development if requested by the department. The **environmental** assessment ~~shall~~**must** include the effects ~~upon~~**on** wetland benefits and the effects ~~upon~~**on** the water quality, flow, and levels, and the wildlife, fish, and vegetation within any contiguous inland lake or stream.

(2) For the purposes of subsection (1), a proposed use or development of a wetland ~~shall~~**must** be covered by a single permit application under this part if the scope, extent, and purpose of a use or development are made known at the time of the application for the permit.

(3) Except as provided in subsections (4) and (5), an application for a permit submitted under subsection (1) ~~shall~~**must** be accompanied by the following application fee, as applicable:

(a) For a project in a category of activities for which a general permit is issued under section 30312(2), a fee of \$50.00.

(b) For activities included in a minor project category established under section 30312(1), a fee of \$100.00.

(c) For a major project, including any of the following, a fee of \$2,000.00:

(i) Filling or draining of 1 acre or more of coastal or inland wetland.

(ii) 10,000 cubic yards or more of wetland fill.

(iii) A new golf course affecting wetland.

(iv) A subdivision affecting wetland.

(v) A condominium affecting wetland.



(d) For all other projects, a fee of \$500.00.

(4) A project that requires review and approval under this part and 1 or more of the following is subject to only the single highest fee required under this part or the following:

(a) Section 3104.

(b) Part 301.

(c) Part 323.

(d) Part 325.

(e) Section 117 of the land division act, 1967 PA 288, MCL 560.117.

(5) If work has been done in violation of a permit requirement under this part, the department shall consider accepting and may accept an application for a permit if the application is accompanied by a fee equal to twice the application fee otherwise required under this section.

(6) If the department determines that a permit is not required under this part or denies an application for a permit under this part, the department shall promptly refund the application fee paid under this section.

(7) The department may issue a conditional permit before the expiration of the 20-day period referred to in section 30307 if emergency conditions warrant a project to protect property or the public health, safety, or welfare.

(8) On receipt of an application submitted under this section, the department may perform a site visit and request any required changes before the time period in which an application is determined to be administratively complete under section 1305 expires. If the department does not perform a site visit before the time period in which an application is determined to be



1 administratively complete under section 1305 expires, the
2 department shall not require changes to the permit application
3 following any subsequent site visit. If the department performs a
4 site visit after an application has been determined to be
5 administratively complete under section 1305, the department shall
6 not require changes to the application following that site visit.

7 Enacting section 1. This amendatory act does not take effect
8 unless all of the following bills of the 103rd Legislature are
9 enacted into law:

10 (a) House Bill No. 5936.

11 (b) House Bill No. 5937.

12 (c) House Bill No. 5938.